

ORDER SHEET
IN THE LAHORE HIGH COURT
LAHORE.

JUDICIAL DEPARTMENT

Crl. Misc. No. 21076-B of 2020

Khursheed Bibi

VS.

The State & another.

S.No. of order/ proceeding	Date of order/ proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.
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14.05.2020

Mian Kashif Abbas, Advocate for the petitioner.

Mr. Munir Ahmad Sial, Deputy Prosecutor General with Ali Raza, Sl.

Through the instant petition under section 497 Cr.P.C., the petitioner, namely Khursheed Bibi seeks post-arrest bail in the case FIR No.11 of 2020 dated 10.01.2020 registered at Police Station Garh Maharaja, District Jhang in respect of an offence under section 9(c) of the Control of Narcotic Substances Act, 1997.

2. As per record, the allegation against the petitioner is that on 10.01.2020 she was apprehended by the police and 2420 grams of “Charas”, in shape of three pieces , was allegedly recovered from her possession.

3. I have heard the learned counsel for the petitioner, the Deputy Prosecutor General and perused the record with their able assistance.

4. As is evident from the perusal of the record the petitioner was apprehended by the police and 2420 grams of “Charas”, in shape of three pieces, was allegedly recovered from her possession. *Prima facie*, sufficient incriminating evidentiary material exists, in the shape of a prompt F.I.R , the statements recorded under section 161 of the Code of Criminal Procedure, 1898 of the witnesses of the recovery and the substantial quantity of the recovered contraband taken into possession by the Investigating Officer , to indicate the presence and connectivity

of the petitioner with the alleged crime. According to police, the petitioner is also involved in three criminal case of similar nature. Be that it may, presently no material exists to presume that the police party had substituted the petitioner with the real accused . As to the contention of learned counsel for the petitioner that the petitioner has been involved with malafide due to her enmity with police , suffice is to observe that the private complaint filed by the son of the petitioner against the police officials, with regard to her version of the circumstances of her arrest and lodging of the instant F.I.R, was dismissed by the learned Additional Sessions Judge , AhmedPur Sial vide his order dated 27.01.2020. This fact has not been denied by the learned counsel for the petitioner, so due to this admitted position the ground of enmity of the petitioner with the police remains elusive. The other litigation referred to by learned counsel for the petitioner with respect to earlier episodes of arrest and recovery of narcotics from the husband of the petitioner , her son and the petitioner relate to the year 2018 and are hardly relevant .Obviously, the offence with which the petitioner stands charged being heinous in its nature squarely falls within the four corners of the prohibition as contemplated by section 51 of the Control of Narcotic Substances Act, 1997. It is true that the case of a female fell within the proviso to section 497(1)of Cr.P.C. but it is not correct to presume that the case of such a person gets equated with the case of a person arrested for a *bailable* offence or that such a person gets clothed with a right to get released on bail. Grant of bail to such a person or refusal thereof still remains within the discretion of the competent Court to be exercised judiciously in accordance with the facts of each case and in terms of the principles regulating the same. The allegation against the petitioner depicts callousness of the petitioner and her indifference to the consequences of her actions.

5. For the foregoing facts and reasons, this Court finds that no case for the exercise of discretion in favor of the petitioner is made out and consequently, the captioned petition being devoid of

any merit is accordingly **dismissed**. Learned Deputy Prosecutor General has pointed out that the report under section 173 Cr.PC has already been submitted . In view of this, a direction is issued to the learned trial court to conclude the trial of the case expeditiously, preferably within a period of **four** months from the receipt of copy of this order. It is clarified that the observations enumerated are absolutely tentative in nature and restricted only to the extent of this particular petition, having no nexus and relevance with the trial, which shall be concluded quite independently and purely on merit.

(SADIQ MAHMUD KHURRAM)
JUDGE

Raheel

APPROVED FOR REPORTING
JUDGE